

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

TANYA ALLEN,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE DAVID
SOLMONSOHN, Tax No. 933374, SERGEANT
CHRISTOPHER THOMAS, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present),

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates KINGS
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 18, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE DAVID SOLMONSOHN, Tax No. 933374, Narcotics Borough Brooklyn
North, 1 Police Plaza, Room 1100, New York, NY
SERGEANT CHRISTOPHER THOMAS, Narcotics Borough Brooklyn North, 1 Police
Plaza, Room 1100, NY, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

TANYA ALLEN,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, DETECTIVE DAVID
SOLMONSOHN, Tax No. 933374, SERGEANT
CHRISTOPHER THOMAS, and POLICE OFFICERS
JOHN DOES #1-10 (names and number of whom are
unknown at present),**JURY TRIAL DEMANDED**

Defendants.

----- X

Plaintiff TANYA ALLEN, by her attorneys, Jacobs & Hazan, LLP, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 27, 2017, at approximately 7:30 p.m., plaintiff Tanya Allen was lawfully present inside of her apartment located at 324 Bedford Street, Apt. C5, Brooklyn, New York, when the defendant police officers unlawfully entered the apartment without probable cause or any legal justification. The defendant officers unlawfully searched plaintiff's person and the entire apartment. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or any legal justification to accuse plaintiff of committing a crime or violating the law in any manner. Thereafter, the defendants denied plaintiff the right to due process and a fair trial and maliciously prosecuted plaintiff until the Judge agreed to dismiss all charges against plaintiff November 20, 2017. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied her rights to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff TANYA ALLEN is and was at all times relevant herein a resident of the State of New York.

3. DETECTIVE DAVID SOLMONSOHN, Tax No. 933374, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE DAVID SOLMONSOHN, Tax No. 933374, is and was at all times relevant herein, assigned to Narcotics Borough Brooklyn North.

5. DETECTIVE DAVID SOLMONSOHN, Tax No. 933374, is being sued in his individual and official capacity.

6. SERGEANT CHRISTOPHER THOMAS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. SERGEANT CHRISTOPHER THOMAS, is and was at all times relevant herein, assigned to Narcotics Borough Brooklyn North.

8. SERGEANT CHRISTOPHER THOMAS, is being sued in his individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police

force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

14. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

15. The CITY OF NEW YORK conducted a hearing pursuant to 50-h of the general municipal law on or about April 20, 2018.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On April 27, 2017, at approximately 7:30 p.m., plaintiff was lawfully present inside of her apartment located at 324 Bedford Street, Apt. C5, Brooklyn, New York.

20. April 27, 2017, at approximately 7:30 p.m., the defendant police officers unlawfully entered Bedford Street, Apt. C5, Brooklyn, New York, and searched the apartment and the individuals present.

21. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

22. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe she committed a crime or violated the law.

23. Nevertheless, plaintiff was unlawfully handcuffed, arrested, and transported against her will to the 75th Precinct where she was searched, photographed, fingerprinted, and detained in a filthy holding cell for many hours.

24. While plaintiff was handcuffed, she complained to the police officers that she had a pre-existing back injury and that being handcuffed behind her back was causing pain to her back.

25. Despite numerous complaints regarding the handcuffs causing pain to her back, the defendant police officers ignored her repeatedly complaints of back pain causing her previously existing back injury to be exacerbated.

26. After several hours in unlawful custody, plaintiff was transported to Kings Central Booking and placed in a holding cell.

27. The defendant police officers intentionally provided the Kings County District Attorney's Office with false, misleading and incomplete information regarding their basis for arresting and prosecuting plaintiff and falsely charged plaintiff with crimes she did not commit.

28. Specifically, the defendant police officers falsely stated to the Kings County District Attorney's Office that plaintiff was found to be in possession of drugs.

29. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

30. On April 28, 2017, at approximately 7:30 p.m., after approximately 24 hours in unlawful custody, plaintiff was arraigned in Brooklyn Criminal Court and charged with crimes she did not commit and released on her own recognizance.

31. Thereafter, plaintiff was forced to appear in Court on four additional occasions before the Judge agreed to dismiss all charges on November 20, 2017.

32. As a result of the unlawful entry and search into plaintiff's apartment, she sustained property damage in the amount of approximately \$5,000.

33. As a result of the unlawful arrest and imprisonment, ACS commenced a case against plaintiff for Neglect.

34. As a result of the unlawful arrest and imprisonment, NYCHA rejected her application for housing.

35. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, denial of the right to due process/ fair trial malicious prosecution, and use of excessive force against plaintiff.

36. The unlawful search, false arrest/ imprisonment, denial of a right to fair trial, malicious prosecution, and use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of her right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of her right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

40. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

42. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

43. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

46. Defendants lacked probable cause to search plaintiff.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

51. Defendants commenced and continued a criminal proceeding against plaintiff.

52. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

53. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

54. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Tanya Allen. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

62. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 61 with the same force and effect as if more fully set forth at length herein.

63. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION**Denial of Right to Fair Trial/Due Process**

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

66. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

67. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

68. In withholding/creating false evidence against plaintiff Tanya Allen, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

69. As a result of the foregoing, plaintiff Tanya Allen, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and she was humiliated and subject to other physical constraints.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The use of excessive force by defendants by, amongst other things, by tightly handcuffing plaintiff behind her back causing an exacerbation of plaintiff's pre-existing back injury constituted an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

80. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

81. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Tanya Allen demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 18, 2019

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE DAVID SOLMONSOHN, Tax No. 933374, Narcotics Borough Brooklyn
North, 1 Police Plaza, Room 1100, New York, NY
SERGEANT CHRISTOPHER THOMAS, Narcotics Borough Brooklyn North, 1 Police
Plaza, Room 1100, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
 February 18, 2019

/s/
STUART E. JACOBS